

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 24-09

Served: September 11, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REGARDING COMPLAINANT’S MOTIONS FOR CONFIDENTIAL TREATMENT

Complainant filed several motions for confidential treatment. For the reasons discussed below, Complainant is required to file a revised motion for confidential treatment no later than **September 18, 2025**, so that the redactions to Exhibits 12 and 13 in the appendix match the publicly disclosed materials.

Complainant originally filed a Motion for Confidential Treatment on June 18, 2025 (the “June 18 MCT”), along with Complainant TZ SSE Buyer, LLC’s Opening Brief (“Opening Brief”), Complainant TZ SSE Buyer, LLC’s Proposed Findings of Fact (“CPFF”), and Appendix.

On June 23, 2025, Complainant filed Complainant’s Motion to Withdraw Public Versions of its Opening Brief and Proposed Findings of Fact and for Leave to Re-File Corrected Public and Confidential Versions with Redactions and Markings (“Motion to Re-File”) along with Complainant’s Renewed Motion for Confidential Treatment (“June 20 MCT”).

On July 2, 2025, I issued an Order Setting Status Conference to discuss, in relevant part, Complainant’s confidential markings (the “July 2 Order”).

On July 8, 2025, I held a Status Conference and issued an Order Following Status Conference (the “July 8 Order”). The July 8 Order, in relevant part, required Complainant to file a new Motion for Confidential Treatment and public versions of its Opening Brief and accompanying materials.

On July 30, 2025, after the July 8, 2025, status conference, Complainant filed a Renewed Complainant’s Motion for Confidential Treatment (“July 30 MCT”), which indicated that the parties reduced the number of redactions. (July 30 MCT, at 2). Complainant also filed other revised documents.

The July 30 MCT and redactions are significantly improved over prior filings. In its July 30 MCT, however, Complainant requests a partial redaction of its Exhibit 12 (CX_002273-CX_002276) and Exhibit 13 (CX_002278). The former, Exhibit 12, is a spreadsheet from Respondent regarding various containers. The latter, Exhibit 13, is a spreadsheet from Respondent regarding various charges that were eliminated. Complainant requests that one column of Exhibit 12 be redacted, and information related to eliminated charges on Exhibit 13 be redacted.

In their public filings, both parties partially describe the material in Exhibit 12 that Complainant seeks to treat as confidential. The parties describe the redacted column as having the heading “Notes/Remarks.” In addition, the parties state that several of the containers have the notation: “terminal collect on behalf of COSCO.” (See Complainant TZ SSE Buyer, LLC’s Supplemental Brief, at 3; Respondent’s Opposition Brief, at 17; Complainant TZ SSE Buyer, LLC’s Reply Brief, at 8). Thus, any confidentiality of the redacted information on Exhibit 12 is waived as to the heading of the redacted column (*i.e.*, “Notes/Remarks”) and in all places that the following notation is found: “terminal collect on behalf of COSCO.” The remaining material in Exhibit 12 that is marked as confidential may remain redacted.

As for Exhibit 13, Complainant seeks confidential treatment of information related to the elimination of charges as to four containers – BSIU9552230, BMOU4494813, CSNU6608955, and CSNU7885488. Both parties, however, state in their public filings that the charges as to those four containers were eliminated. (CPFF, at 12, ¶ 55; Respondent’s Responses to Complainant’s Proposed Findings of Fact, at 23, ¶ 55). Accordingly, the confidentiality as to any redacted information on Exhibit 13 is waived as it relates to the four containers identified. The remaining material in Exhibit 13 that is marked as confidential may remain redacted.

The redactions in the Appendix, and Complainant’s request for confidential treatment, should match what the parties discuss publicly. Therefore, the July 30 MCT is **DENIED WITHOUT PREJUDICE** as to Exhibits 12 and 13 as described in this Order. Complainant is to file a revised Motion for Confidential Treatment and submit corrected confidential versions of Exhibits 12 and 13 no later than **September 18, 2025**.

In addition, I **DENY** the June 18 MCT and June 23 MCT as moot because they were superseded by Complainant’s filings of July 30, 2025. I **GRANT IN PART** the Motion to Re-File to the extent Complainant seeks to withdraw the public versions of its Opening Brief and CPFF filed June 18, 2025; I **DENY IN PART** the Motion to Re-File to the extent Complainant seeks to make the material filed June 23, 2025, as public, as superseded by Complainant’s filings of July 30, 2025.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge